

those that had nothing to do with land reforms like nationalisation of bus routes, and takeover of the management of a mill. Parliament kept amending the Constitution to put inadequacy of compensation beyond scrutiny but the Supreme Court found ways to invalidate laws that short-changed citizens. The message was clear—the court wouldn't bend constitutional principles to accommodate populist views. This battle set the stage for the first revolution—from 1967 to 1973.

The court was headed from June 1966, for 10 months, by Justice Subba Rao. It struck down the First Amendment, twice upheld in the past, in 1967 (the Golaknath case), and held that Parliament couldn't amend fundamental rights. Though considered flawed, this judgement sowed the seed of a revolution in constitutional law and the principles of limited government. The philosophy was that a limited parliament, a creature of the Constitution, couldn't rewrite the Constitution merely because the party in power, either by its presence in the House, or on account of the issue in hand, garnered sufficient numbers.

Two years later, in the bank nationalisation case, the Supreme Court invalidated the law on the ground that Parliament couldn't take away the assets of banks

without paying compensation to shareholders. It reversed the earlier theory that fundamental rights were self-contained compartments that widened the judicial scrutiny of executive and legislative measures. While the government was still smarting, in 1970, the court struck down the order of the President derecognising all princes and stripped them of their privy purses guaranteed by the Constitution.

In 1973, the court reconsidered the Golaknath judgement and the ultimate ratio of the case was scoffed at as a let-down and a highly nebulous doctrine, impossible to apply and one that sought to infringe upon parliamentary supremacy. History has proved the importance of this verdict—this judgement is a revolution in constitutional law. A constitutional court

asserted that in a written Constitution, governance could be within the rubric of permissible means, and it would always be a court—not the elected representatives—who would decide when the legislature crossed the line. This judgement laid the foundation for the court invalidating the infamous amendments of the Emergency that put the President, prime minister and speaker beyond the pale of law.

The significance of the 'basic structure' doctrine became apparent within two years. Indira Gandhi

72 lakh

civil cases
were pending
in subordinate
courts till
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